

Court No. - 39

Case :- WRIT - C No. - 41709 of 2014

Petitioner :- Gaurav Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Karan Singh Yadav

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Put up as fresh on 20.8.2014.

In the meantime, Sri Shivam Yadav, who has accepted notice on behalf of respondent no.4, may obtain instructions in the matter.

Order Date :- 12.8.2014

Ashok Kr.

Court No. - 39

Case :- WRIT - C No. - 41709 of 2014

Petitioner :- Gaurav Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Karan Singh Yadav

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Sri Shivam Yadav, appearing for the respondent-Corporation on the basis of instructions states that there is a dispute regarding the bills raised, which is being recovered as arrears of land revenue.

Under Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005, if a consumer disputes the accuracy of any bill and file a complaint with the competent authority, he shall proceed to decide the same.

Sri Shivam Yadav fairly states that in case petitioner files an objection before the respondent no.4-Executive Engineer, Madhanchal Vidyut Vitran Nigam Ltd., District Shahjahanpur, the same shall be considered and decided by the said authority in accordance with law and the provisions of U.P. Electricity Supply Code, 2005.

Considering the facts and circumstances, the writ petition stands **disposed of** with liberty to petitioner to make a complaint before the respondent no.4-Executive Engineer, Madhanchal Vidyut Vitran Nigam Ltd., District Shahjahanpur with respect to excess and wrong bills within a period of ten days from today and with direction to respondent no.4 to consider and decide the same by passing a reasoned and speaking order, expeditiously.

Till the disposal of the complaint to be made by the petitioner, the recovery proceedings shall remain in abeyance and thereafter, shall abide by the order to be passed by the competent authority.

It is also made clear that in case the petitioner does not file complaint within a period of 10 days from today, this order shall lose its efficacy and the writ petition be deemed to have been dismissed.

Order Date :- 20.8.2014

Anil